Residential Tenancies Act: Study Notes

Alberta, Residential Tenancies Act, SA 2004, c. R-17.1, and its regulations

> **Disclaimer:** These are summary study notes, not legal advice. Fees, limits and interest rates change. Check the current Act at *kings-printer.alberta.ca* and guidance from Service Alberta and the RTDRS before relying on any figure.

1. Scope and Key Concepts

- **Applies to:** residential tenancy agreements and residential premises in Alberta. Mobile home *sites* are covered by the separate Mobile Home Sites Tenancies Act.
- **Does not apply to (s. 2), among others:** rooms where the tenant shares a kitchen or bathroom with the owner who lives there, hotels and motels, nursing homes and care facilities, and emergency shelters.
- **Cannot contract out:** any waiver of a tenant's rights under the Act is void, and agreement terms that conflict with the Act are unenforceable.
- **Tenancy types:** *periodic* (weekly or monthly, which continue until either party gives proper notice) or *fixed term* (which ends automatically on the end date, so no notice is needed).
- **Where disputes go:** the **Residential Tenancy Dispute Resolution Service (RTDRS)** or the courts (Alberta Court of Justice or Court of King's Bench).

2. The Tenancy Agreement

- An agreement can be written, oral or implied. The Act applies to all of them.
- If the agreement is written, the landlord must give the tenant a **signed copy within 21 days**. The tenant may withhold rent until they receive it.
- The landlord must give the tenant a name and address in Alberta where notices can be served.
- Terms the Act implies into every agreement are called **covenants**, and they cannot be removed by agreement.

3. Security Deposit

Item	Rule
Maximum amount (s. 43)	**One month's rent** at the start of the tenancy. The deposit cannot be increased later, even if rent goes up.
Trust account	The landlord must deposit it in a **trust account** at a financial institution in Alberta within **2 banking days** of receiving it.
Interest	Payable to the tenant at the annual rate set by regulation (this has been 0% in recent years). Check the current rate.
Inspection rule	If the landlord does not complete both the move-in and move-out inspection reports, the landlord **cannot deduct for damage**.
Return (s. 45)	Within **10 days** after the tenant gives up possession, the landlord must either return the full deposit plus interest or deliver a **statement of account** listing deductions and return the balance.
Permitted deductions	Unpaid rent and utilities, damage beyond **normal wear and tear**, cleaning needed to return the unit to its move-in condition, and other amounts the tenant owes under the agreement.
If deductions are unclear	If the landlord cannot determine the full amount within 10 days, they must send an estimated statement and a final one within 30 days.

4. Inspection Reports (s. 19)

- Inspection reports are required **within one week before or after** the tenant moves in, and **within one week before or after** the tenant moves out.
- The landlord and tenant inspect together. Both sign the report, and the tenant receives a copy.
- If the tenant refuses or does not attend after reasonable opportunity, the landlord may do the inspection alone and note that on the report.
- The reports are the main evidence in any deposit dispute, so photos with dates help.

5. Rent and Rent Increases

- **No rent cap:** Alberta sets no maximum percentage, but it does set rules on frequency and notice.
- **Frequency (s. 14):** a landlord may raise rent at most once every **365 days** (counted from the start of the tenancy or the last increase).
- **Notice for a periodic tenancy: 3 full tenancy months** for monthly tenancies, or **12 full tenancy weeks** for weekly tenancies. The notice must be in writing.
- **Fixed term:** the rent cannot be increased during the term. The landlord can change the rent only for a new agreement.
- **No unilateral rent withholding:** the tenant must keep paying rent and apply for a remedy, such as an abatement (reduction), through the RTDRS or the court.

6. Rights and Obligations During the Tenancy

Landlord covenants (s. 16)

- Make the premises available to the tenant on the agreed date.
- Not interfere with the tenant's **peaceful possession**.
- Keep the premises in a condition that meets the **Minimum Housing and Health Standards** (Public Health Act).

Tenant covenants (s. 21)

- Pay rent on time.
- Not significantly interfere with the rights of the landlord or other tenants.
- Not do anything illegal on the property, and not endanger people or property.
- Not do significant damage, and keep the premises reasonably clean.
- Move out when the tenancy ends.

Landlord entry (s. 23)

- The landlord needs **24 hours' written notice** for entry between **8 a.m. and 8 p.m.** Entry is not allowed on a Sunday or the tenant's religious holiday.
- The notice must state the reason and the date and time window, and it must be signed.
- Permitted reasons are inspecting the premises, making repairs, pest control, and showing the unit to a prospective tenant or buyer.
- No notice is needed in an emergency, with the tenant's consent at the time, or if the tenant has abandoned the premises.

7. Ending a Tenancy

A notice must be **in writing, signed, and dated**, and it must state the termination date. Landlord notices must also state the reason (s. 12).

By the tenant

Situation	Notice
Monthly periodic	At least **one full tenancy month**, ending on the last day of a tenancy month
Weekly periodic	At least **one full tenancy week**
Fixed term	No notice needed, since it ends on the end date. Leaving early may make the tenant liable for lost rent, though the landlord must try to re-rent the unit (duty to mitigate).
Domestic violence (s. 47.4)	**28 days**, with a certificate from the designated authority. This works even during a fixed term.

By the landlord

Reason	Notice	Notes
Periodic tenancy, for a reason listed in the Act (s. 11): sale where the buyer will occupy, landlord or family will occupy, demolition, major renovation, or change of use	**3 full tenancy months** (monthly) or **12 full tenancy weeks** (weekly)	A periodic tenancy can be ended only for a listed reason
Conversion to condominium	**365 days**	Special rules apply
Substantial breach, including unpaid rent (s. 29)	**14 days**	For unpaid rent, the notice is void if the tenant pays the full arrears before the termination date. For other breaches, the tenant may file a written objection, and the landlord must then apply for possession.
Assault or threat of assault (s. 30)	**24 hours**	The landlord must apply promptly to confirm the termination
Fixed term	Ends on the end date	The landlord may also apply to end it early for substantial breach

- The landlord can remove a tenant only through a **court or RTDRS order**, enforced by a civil enforcement agency. Lockouts and changing locks to evict are illegal.
- **Abandoned goods:** the landlord must keep items of value for **30 days** before selling or disposing of them, following the regulation.

8. Dispute Resolution

- The **RTDRS** is a faster and cheaper alternative to court. Hearings are usually by phone, and the filing fee is about **$75**.
- The RTDRS hears claims for possession, deposits, rent arrears, damages and abatement, up to the monetary limit of the Alberta Court of Justice ($100,000; check the current figure).
- The applicant must serve the application on the other party before the hearing.
- An RTDRS order is filed with the Court of King's Bench and enforced like a court order. An order can be appealed to the Court of King's Bench.
- **Limitation period:** generally **2 years** from when the claim was discovered (Limitations Act).
- **Service Alberta Consumer Investigations** can investigate offences, such as illegal entry or failing to put a deposit in trust. Fines can apply.

9. Quick-Reference Numbers

Rule	Number
Security deposit maximum	1 month's rent
Deposit into trust account	Within 2 banking days
Deposit return or statement of account	Within 10 days of the tenant moving out
Copy of written agreement to tenant	Within 21 days
Inspection reports	Within 1 week of move-in and of move-out
Landlord entry notice	24 hours, 8 a.m. to 8 p.m., not Sundays or religious holidays
Rent increase frequency	Once per 365 days
Rent increase notice	3 full tenancy months (monthly), 12 full weeks (weekly)
Tenant notice (monthly periodic)	1 full tenancy month
Landlord notice for a listed reason	3 full tenancy months
Substantial breach notice	14 days
Assault or threat notice	24 hours
Domestic violence termination	28 days
Condo conversion notice	365 days
Abandoned goods storage	30 days

> **Study tip:** Learn the pairs by who gives notice. Landlord notices are 3 months (listed reason), 14 days (breach), 24 hours (assault) and 365 days (condo conversion). Tenant notices are 1 month (periodic) and 28 days (domestic violence). For deposits, remember 1 month maximum, 2 days into trust, and 10 days to return.

Prepared as study notes for smartha-Edu. Sources: Residential Tenancies Act (SA 2004, c. R-17.1), its regulations, and Service Alberta and RTDRS guidance.